

FEDERAL BUREAU OF INVESTIGATION
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UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

DATE: 12/7/77

FROM : SAC, SACRAMENTO (157-4159) (P*)

SUBJECT: DENNIS JAMES BANKS
DS - AIM
OO: SC

ReSClet and LHM to Bureau, 4/27/77, and SClet to Bureau, 11/16/77.

Enclosed for the Bureau are five copies, for San Francisco two copies, and for Minneapolis one copy of LHM, dated and captioned as above, constituting a progress report in this matter since the inception of a full investigation of subject on 1/14/77.

Interview of subject is not being recommended since there is no reason to believe it would be productive and could result in re-enforcing allegations by the American Indian Movement (AIM) that the FBI is harassing and obstructing the legitimate activities of American Indians. In addition, efforts to interview BANKS have been denied by his attorney, [redacted] of Oakland, California.

Sacramento is in a position through established sources and [redacted] to become aware of any possible re-emergence of subject within AIM should such occur. However, at present Sacramento is placing this case in a pending inactive status awaiting results of lead outstanding in SClet, dated 11/16/77, for San Francisco to follow the outcome of the hearing before the California Supreme Court.

Full investigation of BANKS was instituted when he held a position of national leadership in AIM; however, this is no longer the case, and BANKS has apparently become content in his lifestyle at DQU. It would therefore appear

- 2 - Bureau (Enc. 5) (RM)
1 - Minneapolis (157-846) (Enc. 1) (RM)
2 - San Francisco (100-79338) (Enc. 2) (RM)
1 - Sacramento

WAW:epg

(6)

DEC 9 1977



SC 157-4159

that the standard for a full investigation under the Attorney General guidelines can no longer be satisfied, and Sacramento recommends that FBIHQ terminate this investigation with the exception of determining the outcome of the above hearing. Should the Bureau so desire, it may refer this matter to the Investigative Review Unit of the Department for concurrence in Sacramento's recommendation.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE
CONSIDERED ARMED AND DANGEROUS.



UNITED STATES DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

In Reply, Please Refer to
File No.

Sacramento, California
December 7, 1977

DENNIS JAMES BANKS

Residence

Dennis James Banks, born April 12, 1937, at Federal Dam, Minnesota, resides at 1617 Clemson Drive, Davis, California.

Employment

Banks is presently employed as a member of the faculty at Deganawidah Quetzalcoatl University (DQU), a two-year academic institution recently accredited on July 1, 1977, to bestow A.A. or A.S. degrees primarily in the fields of Native American and Chicano studies. DQU is located near Davis, California.

Legal Process

The State of South Dakota is presently seeking to extradite Banks from California for sentencing following conviction in South Dakota in July, 1975, on charges of riot and assault. Following Banks' arrest in California in January, 1976, his extradition was blocked by California Governor Edmund G. Brown, Jr., and the case was subsequently referred to the California Supreme Court. Written briefs in this proceeding before the California Supreme Court have been completed, and on November 10, 1977, oral arguments were presented by respective counsel for Banks and the State of California before the California Supreme Court holding session that date in Sacramento. It is anticipated that several months or possibly a year will elapse before a decision is forthcoming from the California Supreme Court.

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recommendations nor conclusions of
the FBI. It is the property of
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it and its contents are not to be
distributed outside your agency.



ENCLOSURE

157-29309-144

DENNIS JAMES BANKS

Activities

Banks is not known to currently hold any position with the American Indian Movement (AIM) (see Appendix), and no information has been received that he has acted in any manner in support of that organization during the past year which would constitute a violation of federal law.

Recommendation

In view of Banks' lack of a position of leadership in AIM or activities on his part in connection with that organization which would be in violation of federal law, it is recommended that full investigation of the activities of Banks be discontinued.

IN VIEW OF PAST ACTIVITIES, BANKS SHOULD BE
CONSIDERED ARMED AND DANGEROUS.

ENCLOSURES TO THE BUREAU (2)

RE: DENNIS JAMES BANKS
(KEY EXTREMIST)
EM - AIM

Enclosed are a xerox copy of a



MP letter to the Bureau dated
11/30/73.

MPfile: 157-846

b7D

157-29309-37

157-29309-37

FILE#

157-29309-37

DATE

12-7 3

EXAMINER

#

0731205073 HX

Q# Item 1

KH

NEGATIVES

INITIALS

Am

FEDERAL GOVERNMENT

The Attorney General
 Attention: Office of Policy and Planning
 Investigation Review Unit
 Director, FBI

1/10/78

DENNIS JAMES BANKS
 DS - AIM

The Federal Bureau of Investigation is conducting an investigation concerning captioned matter in accordance with the current guidelines for domestic security investigations.

Reference:

Enclosures:

- ☒ A memorandum to notify you of
- ☐ An extended preliminary investigation
 - ☐ A limited investigation
 - ☐ A full investigation
- ☐ A 90-day progress report
- ☐ An annual report
- ☒ Other Notification of discontinuance of full domestic security investigation.

Request of Department:

- ☐ It is requested that you determine in writing whether continued full investigation is warranted.

MAILED 3

JAN 10 1978

FBI

☐ Other

EX-111

REC-3

157-29309-145

11 FEB 1 1978

Bureau File Number: 157-29309

2 cc AAG Secm Div (ISS & GCS)

1 cc USSS

1 AAG OP & PI Rcy

1-10-78

56 FEB 8 1978

VRT d/13

MAIL ROOM ☐ TELETYPE UNIT ☐

FBI/DOJ

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

DATE: 3/30/78

FROM : SAC, SAN FRANCISCO (100-79338)(RUC)(SQUAD 14)

SUBJECT: DENNIS JAMES BANKS
DS - AIM
OO: SC

RE SC letter to Director dated 12/7/77.

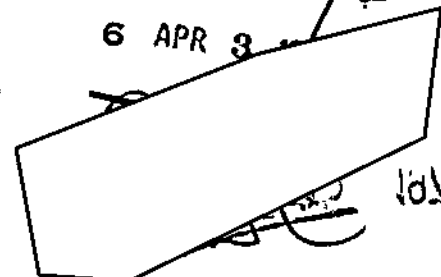
Enclosed herewith for the Bureau and receiving offices are appropriate numbers of LHMs regarding subject DENNIS JAMES BANKS.

As set forth in the attached LHM, the California Supreme Court in a 5 to 2 decision refused to order California Governor EDMUND G. BROWN to extradite Indian leader DENNIS BANKS to South Dakota.

Inasmuch as the decision by the California Supreme Court has been rendered and there are no outstanding leads at San Francisco, this case is considered RUC at San Francisco.

IN VIEW OF PAST ACTIVITIES, DENNIS BANKS SHOULD BE CONSIDERED ARMED AND DANGEROUS.

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- EX-101
- ENCLOSURE
- REC-13 157-29309-146
- 6 APR 3
- 2 - Bureau (Enc. 2)
2 - Minneapolis (157-846)(Enc. 2)
2 - Sacramento (157-4159)(Enc. 2)
1 - San Francisco
SMB/dp
(7) #14
- b6
b7C
- 1018
- APR 11 1978





UNITED STATES DEPARTMENT OF JUSTICE

FEDERAL BUREAU OF INVESTIGATION
San Francisco, California

In Reply, Please Refer to
File No.

March 30, 1978

DENNIS JAMES BANKS

On March 27, 1978, [redacted] California
Supreme Court, San Francisco, telephone [redacted] advised
a decision was filed on March 20, 1978 in the case captioned
State of South Dakota vs. Brown which stated in essence the
Court could not force the Governor of California to extradite
Dennis Banks.

b6
b7C

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your agency.

157-29309-146
ENCLOSURE

(Mount Clipping in Space Below)

Court: Can't force Brown to extradite AIM leader

By Henry Weinstein

The state Supreme Court has ruled that Gov. Brown cannot be ordered to extradite American Indian Movement leader Dennis Banks to South Dakota.

The court said yesterday that it is within Brown's discretion to honor or deny a two-year-old request from South Dakota's attorney general to extradite Banks, but stressed that Brown must act one way or another.

The vote in the case was 5 to 2. Justice Stanley Mosk wrote a stinging dissent, asserting that Brown has a mandatory duty to grant a proper extradition request. He also said "the governor apparently insists he has some undefined inherent right to sit in perpetual contemplation of the matter, to neither grant nor deny the legal demand of a sister state for the return of a convicted felon who fled the state's justice and is harbored in California."

A spokesman for Brown said he would have no immediate comment because he has not yet read the decision.

A lawyer who represented South Dakota before the Supreme Court said the decision would be reviewed to see if it will be appealed to the U.S. Supreme Court. "We will have to consider the opinion and surrounding circumstances to decide what we want to do," said Charles Battle of the Los Angeles firm Gibson, Dunn & Crutcher, which was retained by South Dakota for the case.

Battle said the fact that there was a dispute between two states and the fact that there is a question of interpretation of federal extradition law are grounds for appeal.

UNITED STATES GOVERNMENT

Memorandum

TO : DIRECTOR, FBI (157-29309)

FROM : *pmf* SAC, SACRAMENTO (157-4159) (C)

SUBJECT: DENNIS JAMES *Q* BANKS
DS - AIM
OO: Sacramento

DATE: 4/20/78

mal Re San Francisco letter and LHM, dated 3/30/78.

Enclosed for the Bureau and recipient offices are appropriate numbers of LHM in captioned matter.

IN VIEW OF PAST ACTIVITIES, DENNIS JAMES BANKS
SHOULD BE CONSIDERED ARMED AND DANGEROUS.

2

REC-42

157-29309-147

9 APR 24 1978

EX-101

ENCLOSURE

- ②-Bureau (Enc. 5)
 - 2-Minneapolis (157-846) (Enc. 2)
 - 1-San Francisco (100-79338) (Enc. 1) (Info)
 - 1-Sacramento
- WAW/lma
(6)

1-4084
1cc AAG (ISS, GCS)
USSS
Dept of Interior
5-2-78
VRT/PMK

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